

WORLDS OF SCIENCE FICTION



JUNE

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Man's First Skirmish in
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*** START OF THE PROJECT GUTENBERG EBOOK NIGHT COURT

NIGHT COURT

BY NORMAN ARKAWY

*With a new cast nightly, it was
the best show in town. Gay crowds
mobbed the box office for tickets;
but few went back more than twice....*

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The old courthouse was in the unreconstructed part of town. No buses ran out here, and the only way that Stan and Julie could reach the court was on foot, threading their way through the debris of neglect and vandalism that littered the narrow streets.

This was a part of New York that Julie had never seen. Twentieth century tenements, dimly illuminated by ancient incandescent lamps, lined the rubble-filled streets, where garbage and the decaying carcasses of poisoned rats lay stinking in the gutters. The night was warm, but Julie shivered. She hurried along at Stan's side, trying to hold her breath to shut out the unpleasant smells.

They stopped at the edge of the sidewalk across the street from the court and watched a crowd of people milling about the entrance, anxiously pressing to the box office to try to get hard-to-get tickets.

"Look at that mob!" Julie said. "We'll never get in!" She tried to sound disappointed, but she knew that she could not hide her feeling of relief. She didn't want to go in. She wanted to go away, back to the clean, pretty city she knew.

Stan smiled and patted her hand. "You underestimate me, honey. Little Stanley knows how to take care of himself. I knew there'd be a crowd tonight, so...." He drew two tickets from his pocket. "If you don't reserve 'em, you don't deserve 'em, I always say!"

He took her hand, and they started across the street toward the courthouse. It was a bleak, gray, stone-faced building whose ornate sculptured trim was weather worn and darkened with age. Once an aspiration to architectural beauty, it was pathetically ugly, a melancholy reminder of a bygone and possibly better era.

A modern theater marquee had been incongruously added to the old structure and, atop the shiny new addition, huge letters of light spelled out NIGHT COURT. Smaller cast aluminum letters protruded upward from the metal rim of the arcing canopy and formed the words of a motto: "Judge not, that ye be not judged". Bold type plastered across the gleaming glass facade of the marquee loudly proclaimed: "NEW SHOW NIGHTLY".

Stan and Julie pushed through the congestion outside the entrance of the court. A dizzying confusion of elbows and backs and sweating, eager faces surrounded them. Stan squeezed through the seething mass of people and, holding tightly to his hand, Julie followed. For the tenth—or hundredth—time, she was sorry that she had come. But it was too late to turn back now.

Stan showed his tickets to the guard at the door, and they were ushered politely inside where a uniformed woman with a military bearing guided them to their seats.

"Your ID cards, please," the young woman said.

Julie was startled by the request, and alarmed. A confiscated ID card meant trouble—police trouble! "Why?" she asked, nervously, "What did we do?"

Stan smiled knowingly. "It's just a formality," he assured her. "They give it back to you when you leave." He handed the usher his card.

"And yours, miss?"

Hesitantly, Julie took out her wallet. A cold premonition urged her to stop, to leave now, before it was too late. Then she saw Stan's amused eyes grinning at her and she reminded herself that it was already too late for her to leave. She gave the girl her ID card.

The usher smiled mechanically. She handed them each a program and hurried away up the aisle.

"Don't worry, honey," Stan said, "you'll get it back." He held his program up for her to admire. "Pretty snazzy, huh?"

Julie nodded half-heartedly and silently leafed through her own program. It was a four page souvenir booklet. On the first page, or front cover, was the seal of justice with a perfectly balanced scale and a few words of Latin. Above the seal, NIGHT COURT OF THE CITY OF NEW YORK was embossed in black on the slick yellow paper, and below it, the legend "Judge not, that ye be not judged". Beneath the seal, in red italics, was the inscription: *"For with what judgment ye judge, ye shall be judged: and with what measure ye mete, it shall be measured to you again.—Matthew, 7:2."*

The page was set up attractively but, Julie thought, the quotations seemed inappropriate. What was the purpose of the court, if not to judge?

"I still can't figure it out," Stan said, as if he had read her thoughts. He reached over and tapped Julie's program with his finger. "This is the third time I've been here, and you can believe me, honey, they both judge and mete out justice in this place!" He grinned at her. "This 'judge not' business doesn't make sense!"

Julie said nothing. There was nothing to say.

The room was rapidly filling up now, and she watched the people slowly filing in. She was fascinated by the looks of anticipatory pleasure in their faces, the whole place tingled with barely repressed excitement.

The spectators packed into the room until every seat was taken and they were standing, eight deep, in the rear of the court. Scanning their faces, Julie could feel—could almost taste—the many varied emotions that radiated from them: amusement, lust, hatred, curiosity, vengeance. It was a puzzling combination.

"Now, *this* quotation makes some sense," Stan was saying. Julie turned her attention back to him. He had opened his program booklet to the centerfold, and he pointed to an inscription printed across the top of the two inner pages. "An eye for an eye, a tooth for a tooth," he recited. "That's what this place really stands for!" He said it with relish.

Julie began to feel sick. She did not like the hungry look on Stan's face or the merciless atmosphere in the courtroom. Why had she come?

She stifled a shudder. She knew why she had come. She had come because Stan wanted her to and, to be honest, because she had been curious to see what the Show was like. Now that she was here, she could not call the whole thing off just because her curiosity was satisfied or because she was too squeamish to enjoy what many people considered the best entertainment in town. She had no right to ruin Stan's evening.

She tried to assume a casual interest in the impending events. "What are all these lines for?" she asked weakly, indicating the horizontal lines that crossed the inner pages and were bisected by three vertical lines into four columns of uneven width. "It looks like a ledger."

"It is, sort of," Stan said. "Y'see, honey, this is a scorecard. In the first column, you put the name of the accused; in the second, the offense he's charged with; in the third, his plea; and in the fourth, the disposition of the

case. Up here," he explained, showing her the appropriate place, "you fill in the name of the presiding magistrate. And here," he continued, "you put in the date. It makes a nice souvenir. If you fill it out right, you can look at it six months from now and remember all the fun, just as if it were happening all over again."

"Fun?" Julie's voice cracked.

"Sure!" Stan said with enthusiasm. "It's a terrific show! Everyone has a good time. Well, anyhow ..." and he chuckled, "everyone but the bums!" He laughed.

A man in the row in front of them turned around and looked at Julie. Perspiration glistened in an oily film on his round, pudgy moon-face. A lewd grin twisted his mouth. "First timer?" he asked.

Stan grinned back at him, sharing a comradeship of common experience. "Yeah. I kept telling her she didn't know what she was missing. Finally convinced her to give it a try. I've been here twice before, myself," he added proudly.

"Yeah? Me too!" the man said. "Guess that makes us real old pros: third timers!" He laughed and mopped his face with a crumpled handkerchief. "Damn! it's hot in here!"

Mild embarrassment and a violent dislike for the oily-skinned man combined to redden Julie's face in a hot blush. She shifted uncomfortably in her seat.

"Y'know, I never thought of it before," Stan said to the man in front, "but now that you mention it, I don't know of anybody who's been here three times." A smile of accomplishment spread onto his face. "I'll bet I'm the first one in my sector!"

A growing anger blended into Julie's feeling of disgust. "I don't see that it's anything to be proud of," she said coldly.

Stan's laugh was a derisive bray. "She talks just like a first timer, doesn't she?" The man in front of them nodded knowingly, again sharing with Stan the common bond of experience.

"The next thing you know," Stan jeered kiddingly, "she'll be preaching to us like one of those crackpot reformers."

The revulsion that Julie felt must have been clearly evident now. Stan smiled fondly and put his arm around her shoulder. "I'm only kidding, honey," he half-apologized.

"What's so wrong about the reformers?" Julie demanded, angrily shrugging away his arm. "Why shouldn't men be given another chance? What...?"

"Men?" The man with the moon face burst into loud laughter. "Wait'll you see these bums, kid! They're not men, they're *things*!"

"He's right, honey," Stan said. "These joes don't have any homes or jobs or families or friends. They don't even have ID cards."

"No ID cards?" That was impossible! But Julie was beginning to learn that many impossible things could happen in a world that most citizens knew nothing about. "Then how can they be expected to get jobs? You've got to have an ID card in order to be assigned...."

"That's the general idea, lady," someone nearby said in a loud voice. Several people laughed. "You don't wanna put the court out of business, do ya?"

Julie's lips trembled as she opened her mouth to voice the word that shouted emphatically within her: yes! yes!

"Here they come!" someone shouted, and excited conversation buzzed throughout the room. Julie's voice was never heard. She stared silently at the people near her, then turned to the front of the room to see what they were all watching so avidly.

A straggling line of bedraggled, dirty, unshaven men shuffled into a wire enclosure set along the right wall of the courtroom. Crushed men—weary, lifeless, resigned to a life without hope—they filed into the pen and slumped onto the wooden benches that were placed lengthwise in three rows in the oblong cage. Their shoulders drooped in beaten curves. Their heads were bowed.

The man in front turned around and nudged Julie's knee. His triumphant smile was an obscenity. "Call those men?" He laughed and winked at Stan, then turned back to the front of the court to watch the preliminary proceedings.

An incipient convulsion crawled about in Julie's stomach. Her knee felt cold and clammy where the moon-faced man had touched it. Her skin was

prickly and tight. She began to itch.

"Get up, honey," Stan was saying. "Here comes the judge."

She stood, numbly, her eyes riveted on the men in the wire enclosure.

"Julie!" She felt a hand tugging at her arm. "You can sit down now, Julie," Stan said. "Sit down!"

Mechanically, she sat down. Woodenly, she stared at the tableau before her—the judge perched on his elevated throne, the stone-faced attendants at each side of the dais, the wire pen filled with misery. Through the almost tangible excitement and glee of the spectators, the misery reached her, held her.

The court was in session: the people of the City of New York against ... against an assortment of outcasts—drunks, derelicts, cripples, beggars—the "undesirables" that had been rounded up by the police in the past twenty-four hours. The people of the City of New York against a pen full of men whose only crimes, for the most part, were sickness, lack of hope and failure to possess the ID cards which everyone needed and which, somehow, they had been denied.



How? Julie wondered. How could anyone not have an ID? Even if you lost your card you could get a new one simply by paying a fine. Even if you had been in prison you got a new card when you were released. You had to have a card! Everyone had to....

A court attendant called out: "Garcia, Miguel!" and a small, dark-complexioned man walked out of the detention pen and stood meekly before the judge.

The clerk of the court read the charge, rattling it off in the sing-song jargon of court clerks, his words slurred together into one almost unintelligible burst of sound. There was a pause, and silence in the courtroom.

"Well?" said the magistrate, "how do you plead?" His voice sounded kindly. He sat high on his bench, hunched into his black robe, and looked down with apparent benignancy on the little man who stood silently before him.

The audience was hushed. It watched hopefully and waited.

Julie could sense the intense excitement in Stan as he leaned forward, straining to catch every detail of the scene, anxious not to miss a thing.

She heard a giggle, then Stan's hearty laugh, then a loud burst of laughter. She opened her eyes.

The defendant was shrugging his shoulders in bewilderment. He turned half-way around to look at the laughing audience, a sheepish grin on his face.

The magistrate smiled his appreciation of the humorous response to his question. "So, you can't make up your mind?" he said in a seemingly friendly and sympathetic way. "Well, I'll tell you what I'll do, Miguel. I'll give you thirty days in the city's hotel to think it over."

Laughter and applause filled the room. The judge nodded his head in a little bow of acknowledgement. Miguel Garcia was led away, still smiling, obviously ignorant of what was happening. Miguel Garcia apparently did not understand English.

Stan was happily filling in the first line of his scorecard. His face was flushed. His eyes were bright. A satisfied smile lingered on his lips.

"Stan, let's leave," Julie said.

Stan laughed in disbelief. "Are you kidding? The fun's just starting."

"Please, Stan. I ... I don't feel well."

"Oh? I'm sorry, honey." It was a formality, like saying 'I beg your pardon' to a stranger you bump into in a crowd. There was no concern in Stan's voice. The second case was being presented, and his attention was rapt upon the clerk and the object of the proceedings, an old white haired derelict.

"Stan, please!" Julie insisted.

"Look, honey," Stan said impatiently, "we can't leave now, even if we wanted to. They don't give back the IDs until after it's all over."

A sharp burst of laughter brought his attention abruptly back to the action up front. The old man had dropped his hat and an attendant had kicked it away from him. The white haired castoff shuffled across the room to retrieve it.

"I missed something!" Stan said, testily. He turned to his neighbor and was hurriedly filled in on what had happened.

"Well, *I'm* leaving!" Julie said. She got up and edged her way out to the aisle. Stan made no protest. He was concentrating on the performance up front.

Julie hurried up the aisle and pushed through the pack of people standing in the back of the room. She found the usher at the door. "I'd like to leave," she told the girl. "May I please have my ID?"

The usher's face was expressionless, her voice efficiently official. "ID cards will be returned at the conclusion of the session."

"But I want to leave now!" Julie protested. "I don't want to see any more of this!"

"No cards can be returned until the session is concluded," the usher recited. It was a final decree of official policy. There could be no arguing, no appeal from the decision. There was no alternative but to abide by it.

Julie returned to her seat. She squeezed past a barricade of knees, rousing disgruntled comments from several of the spectators.

Stan glanced up at her as she settled back into the seat at his side. It was only a glance, and then his eyes were fixed once again on the magistrate, the attendants, and the "undesirable" being judged.

Minutes passed. Hours. Julie suffered the time in silence. She saw and heard, but could hardly believe, the unrestrained sadism of the giggling, laughing, applauding, cheering, jeering audience. What kind of people were these, who laughed at the pain and humiliation of others? What did they find amusing in the ruin of human life?

They laughed when a partially paralyzed hunchback limped before the judge and pleaded guilty to a charge of ogling girls in a public park. They roared with hilarity when the magistrate suspended sentence and commented that a more appropriate charge would have been that of defacing public property. They applauded lustily when he said to the arresting officer, "Bring him in on that one tomorrow and I'll throw the book at him!"

They laughed when an alcoholic appeared, twitching and brushing imaginary creatures from his torn jacket. They howled gleefully when he whimpered and sobbed like a small boy having a nightmare.

They laughed when the magistrate said his fountain pen had run out of ink and, looking into the detention pen, inquired, "Would any of you blue bloods care to make a donation?"

They laughed when a court attendant read a complaint which charged that the defendant, a small skinny man, had attacked the arresting officer, and that the officer (six-three, two hundred and ten pounds) had used reasonable force in defending himself. The man's broken arm was in a sling and bandages covered twelve stitches in his scalp.

The audience laughed. They gloated. They sat in judgment of their fellow men and called for punishment—the more severe, the better.

At last, the detention pen was empty. The last "undesirable" was brought before the bench. He was a small, pathetic looking man dressed in sailor's dungarees. He spoke Norwegian and clumsily tried to explain his predicament with the few words of English that he knew.

"Stop gibbering!" the judge shouted at him. The magistrate's facade of kindness had long since disappeared. He turned to the arresting officer. "Do you speak that language?" He made it sound like a disgrace to be able to speak Norwegian.

The officer shook his head.

"Neither do I," the magistrate said, with obvious pride that he was not contaminated by such knowledge. He arbitrarily ordered the man held until he learned to make himself understood; the hearing to take place when that had been accomplished. The sailor was led away.

The Show was over.

"That's the end of it, folks," the judge said, genially. He tapped his gavel and rose from his seat. The courtroom rang with lusty applause.

The judge hurried through the door to his chambers and the applause died out. The people started to leave. Their animated discussions of the evening's events dinned through the room in a babble of noise.

Julie's head throbbed painfully and there was a queasy feeling in her stomach. She thirsted for fresh air.

Slowly, the mob of spectators formed a procession in the aisle. Slowly, the column of people moved toward the exit. Slowly, slowly, Julie was pushed along with the crowd.

The line paused as each person stopped at the door and waited until his ID card was located and returned to him. Then the procession would take another step forward. And pause again. And again. Occasionally, an ID could not be found and its owner was requested to step aside and allow the line to move on while the search for his card continued. And there was another step forward.

Stan held Julie's hand to prevent the pressing crowd from separating them. "How'd you like it?" he asked. He was aglow with satisfaction, tired by the long evening's excitement but with a pleasant weariness of accomplishment. "It's a terrific show, isn't it?"

Julie did not answer him. She wanted to break away and run and run and run and run! She inched along with the rest of the procession.

At last they reached the door. They told the usher their names and she methodically checked through the cards in her file. The procession behind them waited.

Julie's ID card was quickly found and returned to her, but the usher reported some difficulty in finding Stan's card. He was asked to step aside, please, and let the line go through. He protested at the inconvenience, then sullenly joined a few other people waiting for their cards in the rear of the court.

Julie stood impatiently in the doorway. She watched Stan strike up a grumbling conversation with another detained person. It was the moon-faced man who had been sitting in front of them. For a fleeting moment she thought of the old adage about "birds of a feather".

She waited. People filed past her in a steady stream, from the courtroom, across the lobby, out through the street door. Watching them—smiles and pleasant conversation, civilized small talk and serious debate of the merit of the evening's fare, as if it were a dramatic work of art. She clenched her teeth and prayed that Stan would hurry up.

Soon the flow of people stopped. Still no Stan. Julie waited.

Some twenty minutes later, an attendant came out of the courtroom. He went past Julie, then paused at the door, turned and came over to her. "Waiting for someone, miss?"

"Yes. My friend. They seem to have misplaced his ID card."

The attendant smiled and shook his head. "You might as well go on home, miss. If he's still in there, he won't be coming out for some time."

"I'll wait," Julie said.

"You don't understand, miss. He won't be out tonight."

"What are you talking about? He's just waiting till they find his ID, and it couldn't have gotten up and...."

"Seventeen IDs were lost," the attendant explained. "Those people in there can't get them back. They're going to have to go to Caracas or Milan to apply for new cards."

"Don't be silly!" Julie scoffed. "You don't have to go to another city to apply for a new card! All you have to do is file a claim and pay the fine."

"These are special cases," the attendant said uneasily. He seemed reluctant to talk about it.

Julie frowned. "What's special about them? Their ID cards were lost, weren't they?"

"Look, miss, all I know is every time an ID is lost in there," he nodded toward the courtroom, "they've gotta go out of the country to apply for a

new one. That's all I can tell you."

"But why out of the...?"

"The reassignment orders are being drawn up right now," the attendant said. He led Julie to the street exit. "So you'd better go home and forget that fellow."

Confusion and a vicarious fear made Julie shiver. "Will he ... will they get new cards?"

The attendant shrugged. "They might—some day." He touched her arm. His voice was low, barely audible. "Was this your first time at the Show?"

Julie nodded.

"How did you like it?"

"I ... I ..." She shook her head.

The attendant smiled at her gently. "Don't ever be a third-timer." He released her arm and hurried away down the street.

Julie puzzled over his parting remark as she went out into the foul smelling night and walked away from the courthouse. Suddenly, the street before her dimmed as the lights on the huge marquee blinked out. She turned and looked back at the entrance of the court, now dark and deserted. And then she understood.

She remembered the moon-faced man's observation about the scarcity of third-timers. She understood how the "undesirables" lost their ID cards and why so many could not speak English. She understood the apparent cruelty of the sentences meted out to them, too.

The answer was on the marquee. As she looked back at it, only the raised letters on the canopy were visible, shining luminously in the darkness: "*judge not, that ye be not judged*". And she recalled the quotation on the program: "*For with what judgement ye judge, ye shall be judged.*"

*** END OF THE PROJECT GUTENBERG EBOOK NIGHT COURT

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